Augustin v Formula 3 Brooklyn Inc.

Full Name: Augustin v Formula 3 Brooklyn Inc.
Citation: 2023 NY Slip Op 51113 [U]
Date: July 16, 2023

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Supreme Court, Kings County
Maslow, J.
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Decided on July 16, 2023

Supreme Court, Kings County

Louis Mas J. Augustin, REGINALD HUBERT PRINCE, PAUL ANDRE DALUS, and LESLY PIERRE, Plaintiffs,

against

Formula 3 Brooklyn Inc., BARRY FIZKOWITZ, and BORIS FIZKOWITZ, Defendants.

Index No. 522188/2024

Arenson, Dittmar & Karlan, New York City (Avi Mermelstein of counsel), for plaintiff.

Barry Fizkowitz, defendant pro se.

Boris Fizkowitz, defendant pro se.
Aaron D. Maslow, J.

The following numbered papers were used on this motion: NYSCEF Document Numbers 23-24, 34-81.

The order of this Court dated May 29, 2025 is hereby supplemented to the extent set forth herein.

Background

Plaintiffs Louis Mas J. Augustin, Reginald Prince, Paul Andre Dalus, and Lesly Pierre (collectively "Plaintiffs") brought this complaint against Defendants Formula 3 Brooklyn Inc., Barry Fizkowitz, and Boris Fizkowitz (collectively "Defendants" or "Defendants" alleged failure to pay minimum wage, overtime compensation, and other monies required by the New York Labor Law. Plaintiffs moved pursuant to CPLR § 3025 (b) to be granted leave to amend their complaint due to claims alleged in the proposed amended complaint (Motion Sequence 4). Defendants moved to dismiss the complaint in lieu of a motion for leave to amend (Motion Sequence 5). Defendants also moved to compel Plaintiffs to produce their Social Security numbers, Plaintiffs' Social Security Numbers are required to be produced pursuant to Labor Law § 195 (1) (a) and CPLR § 3101 (a) (4). Plaintiffs' Social Security Numbers are relevant part that, "a corporation or association cannot appear by attorney." Plaintiffs' Counsel, Arenson, Dittmar and Karlan, submitted an extensive motion (Motion Sequence No. 7), the crux of which requested that the Court deny Plaintiffs' motion to leave to amend the proposed complaint, Defendants' motion to dismiss the complaint, and Defendants' motion for alleged frivolous and abusive conduct in the filing and prosecution of their claims.

Following oral argument conducted virtually on May 29, 2025, this Court issued an order, which in pertinent part stated the following:

> The motion by Plaintiffs seeking leave to amend the complaint (Motion Seq. No. 6) is GRANTED to the following extent:
>
> (1) Plaintiffs are granted leave to amend the complaint in the proposed form annexed to the moving papers;
>
> (2) A copy of this order with notice of entry shall be served upon all parties within ten days after entry of the order;
>
> (3) Said amended complaint shall be deemed served upon service of this order with notice of entry thereof;
>
> *(4) Within 30 days after service of the amended complaint, Defendants shall serve an answer to it or otherwise respond thereto.*
>
> The motion by Defendant Barry Fizkowitz seeking an extension of time to respond to the complaint (Motion Seq. 7) and motion for Defendant Formula 3 Brooklyn Inc. to retain an attorney (Motion Seq. 7) is DENIED.
>
> The motion by Defendants Barry Fizkowitz and Boris Fizkowitz seeking various forms of relief, including dismissing the complaint, denying Plaintiffs' motion for leave to amend the complaint, holding Yitzchok Fried Pierre's claims, holding Plaintiffs Reginald Prince and Paul Andre Dalus' claims, and imposing sanctions on Plaintiffs and their counsel, and for a CPLR 3103 protective order (Motion Seq. No. 7) is DENIED.
>
> Additionally, Defendants are ORDERED to comply with LR3 Part 2 Rules, Part 2B, Subpart B, § 115, concerning use of artificial intelligence programs with respect to any future papers submitted to the Court (see copy below).
>
> With respect to the papers submitted by Defendants in connection with Motion Sequence Nos. 5, 6, and 7, determined herein, Defendants BARRY FIZKOWITZ and BORIS FIZKOWITZ shall comply with § 1 by June 13, 2025. Subsequent to June 13, 2025, Plaintiffs are permitted to make any motion with respect thereto.
>
> § 115. Artificial Intelligence (AI) programs. AI submissions with respect to a motion must include a certification by an attorney either that no generative artificial intelligence was used in the drafting of any affidavit, affirmation, or memorandum of law contained within the submission, or that a generative artificial intelligence program was used but all generated text, including citations, quotations, and legal arguments and conclusions have been reviewed by an attorney or pro se self-represented party. If the certification states a generative artificial intelligence program was used, the program must be identified and the submission which contains generated text must be identified. Text must be specified along with which parts of the documents were drafted by the program. ("FOOTer certification pertaining to a particular submission or document shall accompany that suffix.
>
> All parties are encouraged to read IAS Part 2's Rules completely.

As of the writing of this supplemental decision and order, Defendants Barry Fizkowitz and Boris Fizkowitz have failed to comply with Part 2 Rules, Part 2B, Subpart B, § 115 and have failed to comply with Motion Sequence 5 Part 2 Rules, Subpart B, § 115, concerning use of artificial intelligence programs in the papers they submitted in connection with Motion Sequence Nos. 5, 6, and 7.

Discussion

Generative artificial intelligence (AI) has yielded expansive technological breakthroughs for society at large, while simultaneously presenting novel issues of first impression within the judicial system. In 2023, the Southern District of New York addressed the emerging technology in the landmark decision of *Mata v Avianca, Inc.* (678 F Supp 3d 443 [SD NY 2023]). The Court summarized:

> The opposing party wastes time and energy in response by claiming that the Court's time is taken from other important endeavors. The client may be deprived of arguments based on authentic judicial precedent. There is the risk that the reputation of judges and other officials named in fake cases is involved as authors of the bogus opinions and to the reputation of a party attributed with fictional conduct. It promotes cynicism about the legal profession and the judicial system. Moreover, a future litigant may be tempted to defy a judicial ruling by disingenuously claiming doubt about its authenticity (id. at 448-449).

Since *Mata*, the American Bar Association [FN1] has released guidance on AI use, and the technology has been a standard topic at conferences. [FN2] Courts have issued orders in individual cases to address AI use in pleadings. For example, this Court requires a certification of compliance stating that a generative artificial intelligence program was not used, as quoted above in the Court's 2025 order. [FN3] The Eastern District states: "Technological advances are commonplace and there is nothing inherently improper about using a reliable artificial intelligence tool for assistance. But mandatory certifications regarding the use of AI compel the accuracy of their filings." (*Wadsworth*, 678 F Supp 3d at 448).

Nevertheless, bad actors continue to attempt to misuse AI to cause injury. For example, in the Eastern District *Ayinde v Qiyad Collaborative LLC* (No. 05-24-0012 [Ct. App. 5th Cir.]), the Court of Appeals for the Fifth Circuit "has recently imposed sanctions on an attorney who relied on artificial intelligence (AI) for the use of AI to prepare a legal brief."

Appellants' May 15, 2024 Brief cited four cases that could not be located by Appellee or this Court . . . .

On April 20, 2025, Appellees filed a report conceding those identified cases could not be located and offering Appellees' counsel's regrets and acceptance of full responsibility for the error, as well as Appellees' counsel's commitment to implement safeguards against future AI use, including necessary to correct the errors made in their May 15, 2024 Brief. Appellees identified appellant Heidi H. Hofer, an attorney licensed in this State, as the counsel who drafted that brief.

On April 24, 2025, we ordered Appellants' counsel Heidi H. Hofer to appear before this Court on May 8, 2025, to discuss Appellants' request for a opening brief with the Court. At the hearing, Appellants' counsel Heidi H. Hofer appeared with counsel, former justice John G. Browning.

> Regardless of whatever resources are used to prepare a party's brief, every attorney has an ongoing responsibility to review and ensure the accuracy of filings that are submitted to the Court. This includes checking that all case law cited in a brief actually exists and supports the points being made. It is never acceptable to rely on software or technology to prepare a court submission without reviewing and verifying the information. The use of AI or other technology does not excuse lawyers from failure to follow professional standards.
>
> Technology can be helpful, but it cannot replace a lawyer's judgment, research, or ethical responsibilities. The practice of law changes with the use of new technology, but the core duties of competence and candor remain the same. Lawyers must adapt to new tools without lowering their standards.
>
> Having considered the foregoing as well as Appellants' amended brief, we ORDER Appellants' counsel Heidi H. Hofer to complete and file proof of the completion of THREE (3) HOURS of Texas continuing legal education courses on the ethical use and dimensions of generative A.I. for attorneys, TWO (2) HOURS of Texas continuing legal education courses on the ethical use and dimensions of generative A.I. for non-attorneys, and TWO (2) HOURS of Texas continuing legal education courses on the ethical use and dimensions of generative A.I. for law firms. Ms. Hofer shall provide proof of the completion of these courses to Appellee's Notice of Filing Attorney's Fees and Business Records Affidavit. We ORDER Appellants' counsel Heidi H. Hofer to file proof of completion of THIS ORDER with the Court within THIRTY (30) DAYS from the date of this Court's order.

We FURTHER ORDER Appellants' counsel Heidi H. Hofer to pay $2,500 in attorney's fees to Appellee's counsel as a sanction for her misconduct before this Court. See *Lira v McKesse*, 397 S.W.3d 273, 281 (Tex. App.—Dallas 2013, no pet.)(awarding this Court's sanction of "reasonable attorney's fees against those who engage in misconduct before our Court). We ORDER Appellants' counsel Heidi H. Hofer to file proof of payment on or before THIRTY (30) DAYS from the date of this Court's order.

Kings County Supreme Court also recently warned a defendant's counsel, who cited in opposition false case law generated by AI, with sanctions "unless counsel can show good cause why sanctions should not issue." (Rivera, 2024 WL 3700960 [Sup. Ct. Kings County 2025]). Last year the Surrogate's Court addressed allegations of AI use where it was noted that "not all cases cited in a reply brief were either nonexistent or nonexistent (*see Matter of Samuel*, 82 Misc 3d 616 [Sur. Ct. Kings County 2024]). The Samuel Court stated, "Although the court is dubious about using AI to prepare legal documents, it is not necessary to prove use of it or not in this matter. It is enough that the legal system that attorneys as well as pro se litigants not improperly use AI and comply by affirming the accuracy of the information provided to the Court."

Within Defendants' above-mentioned memorandum of law, under Point I, Defendants cite "Graziano v County of Nassau, 202 AD3d 707, 708 (2d Dept.) [2022]." (NYSCEF Doc No. 52 at 2). "Graziano" allegedly supports the proposition that "Discovery cannot resuscitate claims dismissed by this conclusive evidence" (id.). However, upon review of the citation "202 AD3d 707, 708," references not "Graziano," but the *criminal case* of *People v Devore*. As these pages are engaged in civil litigation the use of criminal case law itself is nonsensical. Further, Devore does not stand for any holding regarding discovery and "conclusive evidence." Defendants' citation of a conviction of varying degrees of burglary and robbery (*see People v Devore*, 202 AD3d 707 [2d Dept. 2022]). Yet, Point I of the memorandum of law, which cites "Graziano" and "Devore" in support of the proposition that "Discovery cannot resuscitate claims dismissed by this conclusive evidence" is offered in support of plaintiffs' motion to dismiss. Defendants' Exhibit M, which contains case law printouts, states a contradicting holding for Grazioso beyond what was established in their memorandum of law (NYSCEF Doc No. 68 at 3).

Further in Defendants' memorandum of law, Point III, Section E cites "Bellefonte Re Ins., Co., 737 F.2d 523." (NYSCEF Document Index 39/SCEF Doc No. 52 at 5). Defendants cite Bellefonte to support their proposition that "Discovery cannot since Plaintiffs' pervious Trans.D manage Rahman as controlling the car each operation, Defendants' liability as Plaintiffs' employer is undisputed. However, Bellefonte's actual holding was that "[a]n order granting summary judgment on behalf of a defendant for a lack of alleged fraudulent inducement was proper (see Bellefonte Re Ins. Co. v Argonaut Ins. Co., 757 F2d 523 [2d Cir 1985].

Then, under Point IV, Section A, "Other Failing," Defendants cite two cases which purportedly represent holdings pertaining to Internal Revenue Code (IRC) Sec. 52 at 2. But neither of the cases, Fi v Commr, 2024 WL 3700960 (TC) (2nd Dist 2017), has no mention of time-barred claims, relevant or otherwise, and is instead a First Department case affirming the denial of a CPLR 3025 (b) motion to amend that answer due to futility/inconsistency to state a cognizable claim. The other case is merely referred to as "Fresh," and with no other identifying information, it is impossible for the Court to locate it. Yet, it is cited in the same section as the Tax Law.

Finally, Defendants cite, "Cole, 93 NY2d at 46." in support of Plaintiffs' alleged "demonstrable bad faith" in seeking leave to amend their complaint (NYSCEF Doc No. 52 at 3). But Cole v Arnold (93 NY2d 39 [1999]) is a real case from the Court of Appeals. However, Cole stands for the requirement [illegible] plaintiff to properly satisfy one's pleading burden in order to claim an exception set forth in CPLR § 3101 (d) (1) (i) (ii) (iii) (iv) (v) (vi) (vii) (viii) (ix) (x) (xi) (xii) (xiii) (xiv) (xv) (xvi) (xvii) (xviii) (xix) (xx) (xxi) (xxii) (xxiii) (xxiv) (xxv) (xxvi) (xxvii) (xxviii) (xxix) (xxx) (xxxi) (xxxii) (xxxiii) (xxxiv) (xxxv) (xxxvi) (xxxvii) (xxxviii) (xxxix) (xxxx) (xxxxi) (xxxxii) (xxxxiii) (xxxxiv) (xxxxv) (xxxxvi) (xxxxvii) (xxxxviii) (xxxxix) (xxxxx) (xxxxxi) (xxxxxii) (xxxxxiii) (xxxxxiv) (xxxxxv) (xxxxxvi) (xxxxxvii) (xxxxxviii) (xxxxxix) (xxxxxx) (xxxxxxi) (xxxxxxii) (xxxxxxiii) (xxxxxxiv) (xxxxxxv) (xxxxxxvi) (xxxxxxvii) (xxxxxxviii) (xxxxxxix) (xxxxxxx) (xxxxxxxi) (xxxxxxxii) (xxxxxxxiii) (xxxxxxxiv) (xxxxxxxv) (xxxxxxxvi) (xxxxxxxvii) (xxxxxxxviii) (xxxxxxxix) (xxxxxxxx) (xxxxxxxxi) (xxxxxxxxii) (xxxxxxxxiii) (xxxxxxxxiv) (xxxxxxxxv) (xxxxxxxxvi) (xxxxxxxxvii) (xxxxxxxxviii) (xxxxxxxxix) (xxxxxxxxx) (xxxxxxxxxi) 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